

For the Cause of Justice

Karuna Nundy, *47*
Advocate, Supreme Court

IN 2018, DURING THE KARIM MORANI rape case trial, Karuna Nundy recalls walking into a courtroom and facing dozens of lawyers the accused had hired, including a former attorney-general and one of India's top criminal lawyers. "As Dr. Seuss said, 'there is no one alive who is Youer than you'. In difficult situations, one must play to one's own strengths. That way you can make space for your case, your team and yourself even when the odds are against you," she says. Eventually, the victim, who had six lawyers—one of them Nundy—won that case and Morani's petition for anticipatory bail was dismissed.

Says Nundy, "It was vital that my profession be a vocation. My parents had strong vocations, and these gave their lives purpose. Fighting for constitutional and human rights—and also commercial cases that serve the larger cause of justice—does the same for me." With a background in economics and law, Nundy is one of the top lawyers in India today in the commercial litigation space. She won a case for Paytm against an RBI rule barring blockchain use, played a key role in getting Section 66A of the IT Act struck down in 2015, and won a compensation case for the differently-abled Jeeja Ghosh, who was offloaded from a SpiceJet flight in 2012. Nundy remains committed to human rights cases too, especially those pertaining to gender, free speech and media freedom.

"Constitutionally speaking, these are tough times, but we practise for the tough times," she says. Ensuring that the Bhopal gas leak survivors receive better healthcare and quality water is an important battle for her, as also the fight for intellectual property rights in India. She has been closely involved in the struggle for obtaining marriage rights for same-sex couples and criminalising marital rape. Nundy is also part of the High Level Panel of Legal Experts on Media Freedom, founded by Amal Clooney in 2019. "We've been able to set up pathways for many journalists to find safe havens," she says. Climate is another area she hopes to contribute towards.

As one of the few female SC lawyers, Nundy says she has learnt a lot from her colleagues. "There are thin lines when you argue a case—be assertive but calm; engage with the humanity of those involved and give free rein to your killer instinct. The experience of balancing such factors gives women advocates an edge," she says. ■

-Sonali Acharjee

ACCOMPLISHMENT

One of the few women SC advocates in India, Nundy has been part of a number of important cases, including same-sex marriage rules, criminalisation of marital rape and Bhopal gas leak survivors' rights

WORD OF ADVICE

"Surround yourself with people and ideas that support and inspire you, let the competition stew in their own juices. And, back yourself, back yourself when nobody else will"

TURNING POINT

Nundy cherishes her time at Cambridge University. "The teaching was amazing, we had some of the best known names in law. They'd welcome disagreement and discussion. The experience made it clear that I wanted to be a lawyer," she says